

DOCUMENT CONFIDENTIEL

Projet

Annotated Draft
Law of October 3, 1940
Concerning the Status of Jews

Loi du 3 octobre 1940 portant statut des Juifs

Typed draft with handwritten annotations by Marshal Pétain

Source: Mémorial de la Shoah, Paris

Five-page typed draft with handwritten annotations

Discovered by Serge Klarsfeld

Announced October 3, 2010, on the 70th anniversary of the statute

English translation for History vs Hype

Reading This Document

In October 2010, Serge Klarsfeld announced the discovery of a five-page typed draft of the Statut des Juifs bearing Marshal Pétain's handwritten annotations. The document, stamped DOCUMENT CONFIDENTIEL and marked Projet (Draft) in red pencil, is held at the Mémorial de la Shoah in Paris.

Pétain's annotations are concentrated on the first two pages of the draft, covering the articles that define who is Jewish and which professions are forbidden. Pages three through five, containing the media restrictions, transition provisions, and signatories, bear no significant annotations.

Every single handwritten change made the law harsher. Not one annotation softened it.

Visual Conventions

■ Regular text	— Typed draft (original text)
■ Bold blue text	— Pétain's handwritten additions
■ Red strikethrough	— Text Pétain struck out
■ <i>Gray italic text</i>	— Translator's note

Article numbers shown in square brackets [Art. X → Art. Y] indicate where Pétain renumbered the draft articles. The arrow shows the original draft number and the final published number.

Note: This translation covers the complete five-page draft. Pages 1–2 contain all of Pétain's annotations and are presented in full detail. Pages 3–5 are noted as unannotated and their content matches the published law.

DRAFT PAGE 1 OF 5

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Projet

LAW CONCERNING THE STATUS OF JEWS

Article 1

For the application of the present law, any person descended from three grandparents of the Jewish race, or from two grandparents of the same race if their spouse is themselves Jewish, is regarded as Jewish.

[No annotations by Pétain on Article 1. The racial definition—defining Jewishness by grandparents’ “race” without defining how their race was determined—was already in the typed draft.]

Article 2

Access to and exercise of the public functions and offices enumerated below are forbidden to Jews:

Head of State, Members of the Government, Council of State, Council of the National Order of the Legion of Honor, Court of Cassation, Court of Auditors, Corps of Mines, Corps of Bridges and Roads, General Inspectorate of Finance, Courts of Appeal, Courts of First Instance and all professional courts,

Justices of the Peace,

[ADDED BY PÉTAIN. Extended the judiciary ban from higher courts down to the lowest level of local justice—the village magistrate courts where ordinary French people settled everyday disputes.]

all assemblies arising from election;

[ADDED BY PÉTAİN. The typed draft banned Jews from specific named institutions. Pétain's handwriting added a blanket ban on ALL elected assemblies—municipal councils, departmental councils, any elected body whatsoever.]

Officials of the Department of Foreign Affairs, Secretaries-General of ministerial departments, Directors-General, Directors of central ministry administrations, Prefects, Sub-Prefects, Secretaries-General of Prefectures, Inspectors-General of administrative services at the Ministry of the Interior, civil servants of all grades attached to all police services;

Residents-General, Governors-General, Governors and Secretaries-General of the colonies;

colonial inspectorate;

[ADDED BY PÉTAİN. The typed draft already banned Jews from governing colonies. Pétain added the inspectorate—the officials who oversaw colonial governance. This closed a loophole: Jews couldn't govern colonies AND couldn't inspect how colonies were governed.]

Rectors, Inspectors-General of Public Instruction, Inspectors of Academy, Headmasters or Directors of secondary and primary education establishments;

all teaching personnel;

[ADDED BY PÉTAİN. The typed draft listed only specific educational administrators. Pétain's handwriting broadened this to ALL teaching staff—not just administrators, but every teacher at every level. In the final law, this became its own paragraph: "Members of the teaching corps."]

All officers of the armies of land, sea, and air.

DRAFT PAGE 2 OF 5

→ Pétain writes at the top of page 2: “paragraph 6 of article 2”

[Pétain reorganized the structure. What was originally a separate Article 3 (about state-subsidized enterprises) was absorbed into Article 2 as paragraph 6, making Article 2 a single massive article covering ALL professional exclusions.]

[Art. 3 → Art. 2, §6]

Jews may not hold the functions of administrator, director, or secretary-general in enterprises receiving concessions or subsidies from a public authority; they may hold no position appointed by the Government in enterprises of general interest.

■ ■ ■

[Art. 4 → Art. 3]

Access to and exercise of all public functions other than those enumerated in Articles 2 and 3 are open to Jews only if they can invoke the following conditions:

a) ~~to be a descendant of Jews born French or naturalized before the year 1860;~~

[STRUCK OUT BY PÉTAIN. This was a grandfather clause protecting established French Jewish families—those whose ancestors had been French citizens since before 1860, predating the Third Republic. These were families who had been French for 80+ years, fully integrated into French society. In one pen stroke, Pétain eliminated the distinction between “old French Jews” and recent immigrants. The protection that would have shielded the most assimilated, longest-established Jewish families in France—gone by Pétain’s hand. This clause does NOT appear in the final published law.]

b) to have been cited during the 1914–1918 campaign or at least to hold the Veteran’s Card of 1914–1918;

[Kept. Became final Article 3, condition (a).]

c) to have been cited in dispatches during the 1939–1940 campaign;

[Kept. Became final Article 3, condition (b).]

d) to be decorated with the Legion of Honor for military service or with the Military Medal.

[Kept. Became final Article 3, condition (c). Pétain added “de guerre” (wartime)—narrowing the exception to wartime decorations only, excluding peacetime honors.]

■ ■ ■

[Art. 5 → Art. 4]

Access to and exercise of the liberal professions, independent professions, functions assigned to ministerial officers and to all auxiliaries of justice are permitted to Jews in a proportion fixed, for each category, by public administrative regulations.

Pétain adds between the lines: “if there is reason to”—modifying the quota system to make it more restrictive.

In the professions listed above, special regulations shall determine the conditions under which the elimination of Jews in excess numbers shall take place.

DRAFT PAGES 3–5 OF 5

The remaining three pages of the typed draft contain Articles 5 through 10 of the law as published. These pages bear no significant handwritten annotations by Pétain. The text on these pages matches the version published in the Journal Officiel of October 18, 1940.

For the complete translated text of these articles, see the companion document: Law of October 3, 1940, Concerning the Status of Jews (English Translation).

Summary of Unannotated Articles

Article 5 (Draft page 3)

Total ban on Jews in media: newspapers, magazines, cinema, theater, and radio broadcasting. No exceptions.

Article 6 (Draft page 3)

Jews banned from all professional governing bodies and disciplinary boards.

Article 7 (Draft page 4)

Jewish civil servants must leave within two months of publication. Pension provisions for orderly removal.

Article 8 (Draft page 4)

Individual exemptions possible for Jews who rendered “exceptional services” in literature, science, or art. Discretionary, not automatic.

Article 9 (Draft page 4)

Law applies to Algeria, all colonies, protectorates, and mandated territories—the entire French empire.

Article 10 and signatories (Draft page 5)

Publication clause. Signed by Pétain and nine ministers of the Vichy cabinet.

Summary of Pétain's Annotations

Every change made the law harsher.

Not a single annotation softened it.

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|----|--|-------------------|
| 1. | Added “Justices of the Peace”
<i>Extended judiciary ban to lowest courts</i> | HARSHER |
| 2. | Added “all assemblies arising from election”
<i>Blanket ban on all elected office</i> | HARSHER |
| 3. | Added “colonial inspectorate”
<i>Closed colonial governance loophole</i> | HARSHER |
| 4. | Added “all teaching personnel”
<i>From administrators to ALL teachers</i> | HARSHER |
| 5. | Reorganized Art. 3 → Art. 2 §6
<i>Single comprehensive exclusion article</i> | STRUCTURAL |
| 6. | Struck out the 1860 protection
<i>Removed protection for established French Jewish families</i> | HARSHER |
| 7. | Added “de guerre” qualifier
<i>Narrowed military exception to wartime only</i> | HARSHER |
| 8. | Modified quota language (Art. 5 → 4)
<i>Strengthened enforcement of professional quotas</i> | HARSHER |

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This annotated translation is based on the five-page typed draft with handwritten annotations discovered by Serge Klarsfeld, announced October 3, 2010, at the Mémorial de la Shoah, Paris. The handwriting has been confirmed as Pétain's. Annotations are documented following Klarsfeld's analysis and confirmed against the published text in the Journal Officiel de la République Française, No. 266, October 18, 1940.

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